

**ABORIGINAL & TREATY RIGHTS – LAW 353D
SPRING 2023 – PROF. MICHAEL JACKSON, KC
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**FINAL PROJECT WRITE-UP
DUE APRIL 28th, 2023**

THE PROJECT

The variety of choice in our final projects for LAW 353D allowed for the opportunity for some artistic creativity while in my final semester of law school and for an opportunity to connect with my Métis heritage. Therefore, I knew that I wanted to take advantage of this unique opportunity and create something meaningful, while also going out of my comfort zone. For my final project, I decided to attempt Métis beadwork. As someone who is of Métis ancestry and who has not had the opportunity to grow up within Métis culture, I have never beaded before and thought this would be the perfect opportunity to try.

The project itself took extensively longer than I had anticipated due to how meticulous beadwork is (about 25-30 hours), and even then, I still did not get it “perfect” – but that is not what this is about. This project was about connection to culture, an opportunity to create something in a different way than I am used to in law school and connect the project with what I have learned in class.

THE SIGNIFICANCE

There is more to the beadwork than just the completion of the project or attempting something new. The significance of this project comes from various areas: (1) reconnection to culture; (2) the colours used; and (3) the design created, and more specifically, (i) the number of flowers; and (ii) the contrasting sides.

Reconnection to Culture

As someone who has done their best to reconnect with their Métis culture, I thought that trying Métis beadwork would be a meaningful way to do so. It was an opportunity to use my hands and mind artistically. As I was teaching myself how to bead, I referred to various online Métis beadwork tutorials to ensure that I was beading authentically (certain stitches are unique to Métis beadwork). While I was beading, I felt grateful to have had this opportunity to learn how to bead and to create something meaningful to me. As we have noted in class, colonialism has destroyed and impacted many Indigenous cultures leaving some without their language, skills, or ways of life. To be able to bead I felt like I was reviving a piece of my heritage and I hope that this is something that I will continue to do and later pass on to my own children. Beading is more than just the action itself – it is one more Indigenous person reclaiming their culture through a seemingly small action.

Colour Scheme

The colour scheme of my beadwork also has significance. The side of the art with colour represents Métis (and Indigenous) culture and peoples and the vibrance of those cultures pre-colonialism. It represents that “when the settlers came, Indians were there, organized in

societies and occupying the land as their forefathers had done for centuries.”¹ Although this quote from *Calder* relates specifically to Aboriginal title, I believe that it also highlights the vibrance of Indigenous cultures. And although Métis peoples were not a distinct people until after settlers arrived, I believe that this does not take away from the sophisticated culture of the Métis. Further, the green underlaying the flowers was chosen to represent the growth and the continuation of life being breathed into Indigenous Nations and cultures.

The other side of my artwork is in black, white and gray (colourless). This is to represent a contrast between pre-colonial/before the Constitution of Canada and Indigenous peoples’ distinct ways of life. It is to show the depletion of Indigenous cultures, Nations, traditions, and rights because of *ongoing* colonialism.

Design (Number of Flowers & Contrasting Sides)

The design I chose for my beadwork was an infinity symbol overlaid with various flowers. I choose this symbol because it is on the Métis flag, which represents the Métis Nation and its people. I choose to overlay the infinity symbol with flowers (which are traditional to Métis beadwork). However, the art piece itself is not traditional. Typically, Métis beadwork is represented by the mirroring of images on either side of the artwork. I chose not to mirror the floral images or the colours to represent the stark contrast between Indigenous peoples and the colonial state and to represent the evolvement of Métis (and Indigenous) cultures over time.

The colourless side has three flowers which each represent the Canadian state: the legislature, the executive, and the judiciary; which all play roles in the further colonization of Indigenous peoples. On the colourful side, there are two flowers, one to represent the matriarchs and one to represent the patriarchs in Indigenous communities and Nations. I chose to symbolize the matriarchs and patriarchs because of their importance in Indigenous culture – highlighted throughout our classes in various court proceedings, where Elders would give oral evidence and share the oral histories of their people.² If this information has not been communicated or passed down once these knowledge keepers have passed, vital histories and culture is lost. The importance of Elders within Indigenous communities as knowledge keepers and teachers cannot be ignored, which is why I have chosen to represent it within my work.

Furthermore, the infinity symbol and its infinite circulation does not just represent the past on one side and the present on the other or the Métis flag, it also represents the continuous back and forth that Indigenous peoples have with the Crown through various Aboriginal title, Aboriginal rights, Treaty rights, and Aboriginal land claim cases and negotiations. As we have discussed in class, this is an ongoing relationship between the Crown and Indigenous peoples.

¹ *Calder et al. v. Attorney-General of British Columbia*, 1973 CanLII 4 (2CC), [1973] SCR 313 [*Calder*] at p. 329

² *Delgamuukw v. British Columbia*, 1997 CanLII 302 (SCC), [1997] 2 SCR 1010, the testimony of Mary Johnson, Gwaans, Gisdawwa, and Gwis Gyen; *Saugeen First Nation v. Ontario* (MNRF), 2017 ONSC 3456 (CanLII).

I attached my design to my Métis sash (with the option to potentially remove it later), which felt symbolic as I was reconnecting two cultural symbols to make them one. I am proud of my art piece, and I look forward to creating many more.

BEADWORK & THE PRACTICE OF INDIGENOUS LAW

A final thought is the comparison of Métis beadwork to the practice of Indigenous law. As I began beading, I noticed that the art I was working on could also symbolize the larger practice of Indigenous law by lawyers. Throughout my creation of the artwork, I found that the beading was meticulous and takes great time, patience and care. I compare this with practising Indigenous law because, as evidenced throughout this semester by yourself and various other Indigenous law lawyers, this practice area requires the same things. Practicing Indigenous law is meticulous because it requires the lawyer to understand the culture and traditions of the Nations they are representing; it requires in-depth knowledge, dating back thousands of years; it requires time and patience as many of the Indigenous cases being brought before the courts take years to either settle or come to an end; it takes patience with those who represent the state and do not understand Indigenous culture; it takes care because of the significance these claims have on the Nations. Although care by a lawyer is required in all cases, it is particularly true of Indigenous ones; as Indigenous Nations and peoples fight for rights that are inherently theirs, yet the state still tightly holds onto them. My beadwork was not an easy task, and neither is the practice of Indigenous law, but both are nonetheless rewarding in the end.

THANK YOU

Professor Michael Jackson, KC, I would like to thank you for everything you have taught us, for the opportunity to learn from you, and for the opportunity to be artistic in law school, which is not something we often get to do. This has been an extremely rewarding experience for me, and it is a great way to end my law school career, with this as my final project ever!